

25AVCV01577 25AVCV01577

County: los-angeles

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Case Number: 25AVCV01577 Hearing Date: July 7, 2026 Dept: A14

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES
– NORTH DISTRICT

PERRI ALISE BACH and RICKY ROGER

THOMAS as Co-Trustees of the Richard Bruce Thomas and Mary Elizabeth Thomas
Family Living Trust,

Plaintiffs,

v.

ERSELL REID, and DOES 1 through
10, inclusive,

Defendants.

Case Number 25AVCV01577

[TENTATIVE]

STATEMENT OF
DECISION

Date

of Hearing: July 7, 2026

Dept. A-14

Judge William H.
Forman

I.
Background

This is a breach of contract case
arising out of the sale of real property.

On November 24, 2025, Plaintiffs
Perri Alise Bach and Ricky Roger (together Plaintiffs), acting as Co-Trustees
of the Richard Bruce Thomas and Mary Elizabeth Thomas Family Living Trust, filed
their complaint against Defendant Ersell Reid (Defendant), asserting four
causes of action for (1) breach of contract, (2) breach of oral contract, (3)
common count for quantum meruit, and (4) declaratory relief.

Specifically, Plaintiffs allege
that on June 28, 2024, Plaintiffs, by and through their predecessors in
interest, and Defendant entered into a written contract wherein Defendant
agreed to purchase the subject real property with a closing deadline of August
27, 2024. (Compl., ¶ 7.) Plaintiffs claim Defendant failed and refused to
close, resulting in her material breach of the Agreement, and that Defendant
refused all efforts to mediate or arbitrate the dispute. (Id. at ¶ 10-11.)

On January 27, 2026, Plaintiffs
filed a request for entry of default against Defendant.

On January 29, 2026, Plaintiffs'
request was rejected for procedural deficiencies in the proof of service of
summons.

On February 4, 2026, Plaintiffs
filed an amended proof of service, and another request for entry of default
against Defendant. Default was entered the same day against Defendant.

On February 13, 2026, Defendant specially
appeared and filed an ex parte application for an order setting aside entry of

default on the grounds that the summons were not properly served, that she had no notice of the pending action, and that the Court lacked personal jurisdiction.

On February 17, 2026, the Court granted Defendant's ex parte request and ordered the default entered on February 4, 2026 as to Defendant vacated. The Court made no finding that there was improper service or that the Court lacked personal jurisdiction. The Court determined setting aside the default was in the interests of justice as Defendant had appeared in the matter and stated she was prepared to litigate it.

On April 30, 2026, Plaintiffs filed a request for entry of default against Defendant. Default was entered on the same day.

On May 11, 2026, default judgment was entered in favor of Plaintiffs and against Defendant.

On May 18, 2026, Defendant reserved a hearing date for July 23, 2026 for hearing of a motion to set aside/vacate default and default judgment.

On May 19, 2026, Defendant filed an ex parte application for a temporary restraining order, stay of enforcement of default judgment, and an order preserving the status quo pending hearing on Defendant's motion to set aside default and default judgment.

On May 20, 2026, the Court denied Defendant's ex parte application, but advanced the reserved hearing date for Defendant's motion to vacate entry of default and default judgment to July 7, 2026 and stayed enforcement of the judgment through the July 7, 2026 hearing.

On June 25, 2026, Defendant filed her motion to set aside/vacate entry of default and default judgment, her proposed verified answer, and her proposed cross-complaint.

On June 30, 2026, Plaintiffs filed their opposition.

No reply has been filed.

II.

Preliminary

Procedural Issues

Timeliness of Defendant's Motion – The Court notes that Defendant's motion I untimely. While Defendant originally reserved July 23, 2026 as the hearing date for her motion to vacate or set aside the default and default judgment, the Court advanced this hearing date on May 20, 2026. Defendant was provided with notice. (See Certificate of Mailing dated May 20, 2026.) All moving and supporting papers must be served and filed at least 16 court days before the hearing.

Accordingly, Defendant's motion was due on or before June 11, 2026. The proof of service attached to Defendant's motion indicates that Jan Scott served Defendant's moving papers to Plaintiffs' counsel's both via mail to counsel's business address, and by electronic service, on June 22, 2026. This notice is well beyond the date the present motion was due.

However, notwithstanding the untimely filed motion, given Plaintiffs' substantive opposition and in the interests of resolving the underlying matter, the Court considers the motion on the merits.

III.

Legal

Standard

Standard

for Motion to Set Aside Default and Default Judgment – Per Code of Civil Procedure section 473(b), a court “may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.”

The

general underlying purpose of Code of Civil Procedure section 473, subdivision (b) is to promote the determination of actions on their merits. (Even Zohar Const. & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 839.) However, the court only has broad discretion to vacate the entry of

default, default judgment, or a dismissal where the moving party timely establishes a proper ground for relief. (Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 495.) The moving party bears the burden of establishing that the default was the result of excusable neglect. (Marcotte v. Municipal Court (1976) 64 Cal.App.3d 235, 239.)

California

Code of Civil Procedure section 473, subdivision (d) permits the Court to set aside any void judgment or order.

The

party must seek such relief "within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).)

IV.

Discussion

Application – Defendant

moves the Court for an order setting aside the default and default judgment entered against defendant on the grounds of excusable neglect, pursuant to California Code of Civil Procedure section 473, subdivisions (b) and (d), and equitable relief. "The burden of establishing excusable neglect is upon the party seeking relief who must prove it by a preponderance of the evidence." (Iott v. Franklin (1988) 206 Cal. App. 3d 521, 528, citing Elms v. Elms (1946) 72 Cal. App. 2d 508, 519.)

Specifically, Defendant contends

her neglect resulting in default was the product of a string of circumstances which establish excusable neglect in failing to respond in the present action. Defendant contends she was hospitalized for two weeks, beginning on or around April 13, 2026 and lasting until "late April" (Defendant Decl. ¶ 4) the end of April, rendering her physically and emotionally unable to handle legal matters. (Motion, p. 4:13-14.) On April 23, 2026, Defendant claims she learned of her aunt's passing. (Motion, p. 4:15-17, Ex. A.) Defendant claims that after she was discharged from the hospital, she traveled to New Jersey for funeral and family matters on May 1, returning around May 11, 2026. (Defendant Decl., ¶ 4-5, Ex. B, C.) Finally, during her time in New Jersey, Defendant states she was otherwise occupied attending

to familial and administrative matters, including applying for a replacement Social Security Card on May 4, 2026. (Id. at ¶ 6, Ex. D.)

The Court finds that Defendant has not established proper ground for relief. First, Defendant was unequivocally aware not only of the pending litigation, but also of the consequences of failure to timely respond to the summons, as evidenced by entry of default against Defendant and her subsequent motion for relief in February of this year. While the entry of default was vacated in the first instance, as a result of those prior proceedings, Defendant clearly understands the legal effect of default and was thereby on sufficient notice of her obligations as a participant in this matter to respond within 30 days upon proper service. The Court notes that at no time does Defendant state in her Declaration that she was unaware of the filing date for her responsive pleading.

Second, Defendant executed a Notice and Acknowledgement of the summons, complaint, and relevant papers on March 26, 2026. (Rose-McCaslin Decl., ¶ 5, Ex. A.) There is no question, and Defendant does not dispute, that she was properly served. Thus, Defendant had until Monday, April 27, 2026 to file a responsive pleading and appear in this matter to avoid default. Defendant provides no explanation as to why no responsive pleading was filed between March 26th and April 13th. As to her hospitalization, Defendant states only that it began April 13th and ended in “late April.” (Defendant Decl., ¶ 4.) Indeed, while Defendant is very precise about certain dates – such as when she entered the hospital, when her aunt died, when she applied for a Social Security card – she omits the end date for her hospitalization. Her own declaration suggests it was before her response date of April 27. (“During the relevant period leading to the default judgment, I was hospitalized for approximately two weeks. Thereafter, my aunt passed away on April 23, 2026.” (Defendant’s Decl., ¶ 12-13 (emphasis added).) In any event, default was not entered until April 30, and Defendant has not explained why she was prevented from filing her responsive pleading before that date, or from contacting Plaintiff’s counsel to seek a brief extension of time to respond. Regarding the hospitalization itself, Defendant provides no supporting documentation or explanation as to why her condition would prevent her from submitting a responsive pleading. Other circumstances Defendant points to took place after she was already in default.

Third, the reasons given by Defendant are not satisfactory. As discussed, there is no evidence of

Defendant's hospitalization during the final days in which she was permitted to file a responsive pleading. Her hospitalization also does not excuse her lack of response in the weeks prior, in the time after her discharge (again, a date Defendant does not provide), or why her condition prevented her from attending to this matter while hospitalized or from contacting opposing counsel for an extension. While the Court recognizes the hardship that undoubtably arises in losing a family member, the Court cannot find that this is sufficient to find excusable neglect, particularly in light of Defendant's evidence that she was actively attending to other personal administrative matters, such as filing for a new Social Security card while in New Jersey. Additionally, whether Defendant was in California or New Jersey, she had the ability and means to monitor the active litigation pending against her, or otherwise contact Plaintiffs' counsel and request an extension of time and explain her hardships. She did not do so.

Finally, Defendant failed to exercise diligence in avoiding a second entry of default in this matter. Plaintiffs state that at no point before Defendant's filing of her ex parte application for relief did she contact them to request an extension or explain her inability to respond. (Rose-McCaslin Decl., ¶ 18.) Defendant failed to act when Plaintiffs served her with their request for entry of default on April 29, 2026, after she was apparently released from the hospital and in California. (Rose-McCaslin Decl., ¶ 14.) Defendant took no action when Plaintiff's request for default judgment was served on May 5, 2026. (Rose-McCaslin Decl., ¶ 15.) Defendant took no action when Plaintiffs' notice of entry of judgment was served on May 13, 2026, after she had returned from California. (Rose-McCaslin Decl., ¶ 18.) And what is missing from all of this is any statement from Defendant that she did not know her responsive pleading date.

As to

Defendant's request for equitable relief, the Court has the inherent authority to vacate a default and default judgment on equitable grounds such as extrinsic fraud or extrinsic mistake. (See *Pulte Homes Corporation v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 275.) However, once "a default judgment has been obtained, equitable relief may only be given in exceptional circumstances." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981.) There are three essential requirements to obtain relief on this ground: (1) a meritorious defense; (2) diligence in seeking relief once the default or default judgment is discovered; and (3) a satisfactory excuse for not presenting a defense to the original action. (*Rappleyea*, supra, 8 Cal.4th at 982.) The statutory time limits on relief under California Code of

Civil Procedure sections 473, subdivision (b) and 473.5 do not apply, but once the purported extrinsic fraud or mistake is discovered, a party is expected to proceed diligently to seek relief. This requirement is inextricably intertwined with prejudice to the plaintiff. (*Id.*, at 983-984.)

The Court

finds that Defendant has failed to establish all three requirements exist here. As to the first requirement establishing a meritorious defense, the defendant need only make a minimal showing and does not have to guarantee success or demonstrate with certainty that a different result would be obtained if the default judgment is vacated. (*Mechling v. Asbestos Defendants* (2018) 29 Cal.App.5th 1241, 1246.) The moving defendant only needs to “show facts indicating a sufficiently meritorious claim to entitle [it] to a fair adversary hearing.” (*Ibid* (citations omitted).)

Here, Defendant

sets forth a number of defenses against Plaintiffs, including Plaintiffs' lack of standing, failure to establish authority to act on the trust's behalf, failure to establish enforceable contractual rights, unenforceability of the liquidated damages provision within the contract, breach of escrow, and disputes as to the enforceability of the arbitration and alternate dispute resolutions provisions within the contract. (Motion, p. 5:8-19.) Defendant has offered as evidence communications between Defendant and Plaintiffs regarding Plaintiffs' authority to act on behalf of the trust and standing to bring suit, requests for identification of the parties, requested operative agreements, and correspondence and filings relating to arbitration proceedings. (Defendant Decl., Ex. E-F, J-K.) These documents largely repeat Defendant's allegations. For the reasons stated in the Opposition papers, the Court does not find that the materials “show facts indicating a sufficiently meritorious claim.”

But even

assuming that Defendant had made such a showing, the Court finds that that Defendant has neither exercised diligence in seeking relief once the default and default judgment were entered, nor a satisfactory excuse for not presenting her defense to the original action. Further, Defendant does not allege any extrinsic mistake or fraud in this matter. Thus, Defendant is not entitled to equitable relief from the default judgment entered against her, and this Court declines to exercise its equitable discretion to vacate the default judgment.

As to

Defendant's request for relief pursuant to California Code of Civil Procedure section 473, subdivision (d), Defendant makes no showing that the default judgment is in any way void, and the Court fails to find merit in this request.

Accordingly,

Defendant's motion to set aside default and the default judgment is DENIED.

V.

Conclusion

Defendant Ersell Reid's Motion to

Set Aside Default and Default Judgment is DENIED. The stay in the enforcement of judgment shall be lifted upon the filing of this Order.